

BLUE SLIP

HJD/C-42

(Received under Act No.II of 1990)

ORDER OF THE Court

In the Court of Mr. Justice Muhammad Waheed Khan

Case No. 41. H. J. C. No. 3855/B/2020 Title Allah wa dhara

Case No. _____ Title v.

Case No. _____ Title The State

Decided on 13.01.2021

(a) Judgment approved for reporting Yes

CERTIFICATE

Certified that the judgment/order is based upon or enunciates a principle of law/decides a question of law which is of first impression/distinguishes/over-rules/explains a previous decision.

S. U. C.
JUDGE

- Note:-
- (1) This slip is only to be used when some action is to be taken.
 - (2) If the slip is used, the Reader must attach it to the top of the first page of the judgment.
 - (3) Reader must ask the Judge writing the Judgment whether the Judgment is approved for reporting.
 - (4) Those directions which are not to be used should be deleted.

To be used by IJI

Judgment Upload of Website ☐ Name _____

Signatures _____

Entry in Database ☐ Dated _____

Form No:HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR
JUDICIAL DEPARTMENT

Crl. Misc. No.3853/B/2020

Allah Wadhaya Vs. The State etc.

S.No.of order/ Proceeding	Date of order/ Proceeding	Order with signature of judge, and that of parties or counsel, where necessary.
---------------------------------	---------------------------------	--

13.01.2021

Mian Muhammad Tayyab Wattoo, Advocate for petitioner.
Mr. Javaid Iqbal Bhaaya, ADPP alongwith Khalid SI with record.
Mirza Muhammad Azam, Advocate for the complainant.

Through the instant petition, petitioner Allah Wadhaya, seeks post-arrest bail in case FIR No.97/2020 dated 08.05.2020 registered u/s 302, 34, PPC at P.S. Ghamandpur, Bahawalnagar.

2. Precisely, the prosecution story, as set out in the FIR is that on 08.05.2020 at about 05:00 p.m. in the area of Mauza Trobari situated within the territorial limits of P.S. Ghamandpur, Bahawalnagar, the petitioner along with 05 co-accused persons, while armed with deadly weapons, launched murderous assault upon the complainant and her son and on the successive fire-shots of pistol, made by the present petitioner, the son of the complainant Muhammad Iqbal succumbed to the injuries, hence, the instant FIR.

3. After having dilated upon the facts, in the light of arguments advanced by the learned counsel for the parties and going through the record, it reveals that the petitioner is named in the FIR with the specific accusation of making successive fire-shots

⇒

upon the person of deceased Muhammad Iqbal and the injury attributed to him is duly observed by the medical officer during the autopsy, but the learned counsel for the petitioner laid much stress on the point that in fact five persons from the petitioner's side also received severe injuries on their persons. They were medically examined on the same day and the medical officer observed multiple injuries on their persons and this aspect of the case has been suppressed by the complainant while lodging the instant crime report. During the course of investigation, cross-version on the complaint of the petitioner has been recorded and on conclusion of the investigation, challans in both cases i.e. FIR and cross-version have been submitted before the learned Trial Court. When this situation was confronted to the learned law officer assisted by learned counsel for the complainant, they could not be able to controvert the situation that five persons including the present petitioner got serious injuries on their persons and their medico-legal certificates (MLCs) are also available and also the fact that the complainant has suppressed their injuries in the FIR.

4. So, I find that there are counter cases between the parties and it is yet to be determined as to who was the aggressor and who was aggressed upon and to determine this factor, it requires further inquiry. Reliance in this regard is placed on the dictum laid down by the august Supreme Court of Pakistan in the cases of "SAQIB and others v. The STATE and others (2020 SCMR 677), "ABDUL HAMEED v. ZAHID HUSAIN alias PAPU CHAMAN PATIWALA and others" (2011 SCMR 606), and "SHOAIB MEHMOOD BUTT v. IFTIKHAR-UL-HAQ and 3

others (1996 SCMR 1845). In another celebrated judgment passed by the august Supreme Court of Pakistan in case of "MUHAMMAD SHAFI v. HAKAM ALI AND 7 OTHERS" (1978 SCMR 346), it is observed as under:-

"We have heard the learned counsel for the parties and perused the record. We observe that members of both sides have received injuries, in that six persons from the complainant side have been injured; whereas two accused (respondents herein) have received injuries. In addition, one Ali Muhammad was also injured from the side of the accused, but he has not been mentioned as an accused in the F.I.R. We are, therefore, in agreement with the learned Judge of the High Court that it cannot be said with any degree of certitude, at this stage, as to which side was the aggressor, and his finding that the case was one of further inquiry cannot be held to be perverse, arbitrary or capricious. We are, therefore, not inclined to interfere with his discretion".

5. So, in the light of observation discussed supra and taking guidance from the above referred judgments of the apex Court, I find that there are sufficient reasons to believe that the case of the petitioner, calls for further probe into his guilt within the scope of section 497(2) of the Code of Criminal Procedure, 1898. Even otherwise, it is apprised that the investigation process is already over and the petitioner is behind the bars since 09.09.2020, meaning thereby that his further incarceration is not likely to serve any useful purpose for the prosecution.

6. Under the circumstances, this petition is allowed, and the petitioner is admitted to post-arrest

bail, subject to his furnishing surety bonds in the sum of Rs.2,00,000/- (Rupees two lacs) with two sureties each in the like amount to the satisfaction of the learned Trial Court.

محمد واہد خان
(Muhammad Waheed Khan)
Judge

Approved for reporting.

محمد واہد خان
JUDGE

Muntaz

رج
14/1/2021